

Court No. - 21

Case :- WRIT - C No. - 13786 of 2023

Petitioner :- M/S Kss Electrodes Private Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Avanish Kumar Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Lay before a Bench of which one of us (M.K. Gupta, J.) is not a member, after obtaining nomination from Hon'ble the Chief Justice, if possible as a fresh case on 1.5.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.4.2023

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Court No. - 40

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Counsel for Petitioner :- Avanish Kumar Srivastava, Sr.
Advocate

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Ravi
Anand Agarwal

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

As prayed by learned counsel for the petitioner, put up this matter again on 9.5.2023 as fresh.

Order Date :- 1.5.2023

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Counsel for Petitioner :- Avanish Kumar Srivastava, Sr. Advocate

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Ravi Anand Agarwal

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

1. Heard learned counsel for the petitioner; Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel for the State-respondent no. 1 and Sri Ravi Anand Agarwal, learned counsel for the respondent no. 2 and 3.

2. By means of the present writ petition, petitioner is praying for quashing the demand notice dated 28.04.2022 (Annexure No. 7 to the writ petition) and impugned orders dated 04.02.2023 and 29.03.2023 passed by the second respondent (Annexure No. 10 and 11 to the writ petition) and impugned order dated 01.09.2012 passed by the third respondent (Annexure No. 2 to the writ petition).

3. Learned counsel for the respondent no. 2 and 3 raised a preliminary objection regarding maintainability of the writ petition on the ground that for redressal of his grievance, the petitioner has got efficacious alternative remedy to approach Consumer Grievance Redressal Forum under Section 7.10 of Electricity Supply Code 2005 and as such the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.

4. Once an objection is being raised, we have proceeded to examine the record and we are of the considered opinion once the efficacious alternative remedy is available to the petitioner, there is no reason or occasion to bypass the same and the writ petition is liable to be dismissed on the ground of statutory alternative remedy.

5. In the facts and circumstances, no useful purpose would be served in keeping the writ petition pending and with the consent of the parties, the writ petition is **disposed of** finally with the

direction that in case any such application is being preferred by the petitioner under Code 2005 within 10 days from today, the competent authority would proceed to decide the same strictly in accordance with law on its own merit within further six weeks time ignoring the delay and laches in filing the same but certainly after affording opportunity to all stakeholders in the matter.

Order Date :- 9.5.2023

A.K.Srivastava